

The Political Economy of the New York City Congestion Pricing Program

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Abstract:

This paper examines the political economy of New York City's 2025 congestion pricing program. Analysis of the program's conception, passage, and present opposition reveals that political incentives, rather than empirical evidence, have shaped its development and the debate over its merits. This observation aligns with the public choice theory of regulation. The measured benefits of congestion tolling support maintaining the program, yet the goals of effective transportation policy will remain unrealized in the U.S. without an understanding of how political pressures can undermine these efforts.

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I. Introduction

Implemented in January 2025, New York City's congestion pricing program is the first of its kind in the U.S. Congestion pricing is a Pigouvian tax that imposes the social costs of car-use onto drivers. The plan is intended to reduce traffic and congestion, improve air quality, and generate revenue to improve public transportation systems ([Metropolitan Transit Authority 2025](#)).

This paper will examine the political economy around the NYC congestion pricing program, considering the plan's conception and present opposition to it. I will show that both the creation and opposition to the congestion tax can be explained by public choice theory. Primarily political interests, rather than empirical evidence, have shaped the debate. Still, evidence of its positive impacts should motivate regulators to maintain the program, despite political unpopularity.

II. Details

The Metropolitan Transportation Authority's (MTA) congestion pricing program imposes a toll on vehicles entering Manhattan's Central Business District (CBD), defined as the island south of 61st Street. The toll during the peak period is \$9 for small commercial/passenger vehicles, \$4.50 for motorcycles, and \$14.40-\$21.60 for trucks. Off-peak entry is 75% lower and the toll is only paid once per day. The per-trip charge for for-hire vehicles (e.g., Ubers) is \$1.50 and \$0.75 for taxis ([MTA 2025](#)).

The plan includes many exemptions, with discounts and tax credits for low-income individuals and an exemption for those with disabilities. Emergency vehicles, school buses, commuter vans/buses, and other public vehicles are also exempt ([MTA 2025](#)). Finally, a credit reduces tolls for vehicles entering via the four already-tolled tunnel entries to Manhattan ([MTA 2025](#)).

III. Conception and Approval

Congestion pricing for NYC was first proposed in 1952 by economist and Columbia Professor William Vickrey. It was later proposed by several NYC mayors, from Ed Koch to Michael Bloomberg, but faced heavy opposition each time from businesses, outer boroughs, and suburbs.

The turning point came in 2017. NY Governor Andrew Cuomo faced intense pressure to improve the subway system after repeatedly moving funds out of the MTA budget to fund other initiatives, from lowering tolls on the Verrazano-Narrows Bridge to a \$4.9 million bailout of three ski resorts ([Lovett 2018](#); [Gianaris 2021](#)). The transit system had become increasingly dysfunctional (monthly delays rose from 28,000 to 70,000 from 2012 to 2017) and public frustration was peaking ([“Cuomo Steps” 2017](#)). The Riders Alliance, a transit advocacy group, even created the hashtag “#CuomosMTA” to mobilize public discontent and pressure Cuomo into funding transportation improvements ([Plum 2025](#)).

Public choice theory explains Cuomo’s effort to pass congestion pricing legislation. In 2019, he announced he would run for a fourth term—addressing deteriorating transit and restoring voter trust would be vital in his reelection effort ([Axelroad 2019](#)). Cuomo’s response was to include congestion pricing in the 2019 NYS budget via the Traffic Mobility Act, bundling it with more popular provisions to make the policy politically viable ([“New Push to Repeal” 2019](#)).

The 2018 congressional election results also supported his efforts. In response to Trump’s 2016 election, NY shifted left, with Democrats flipping three House seats from suburban Republicans who had traditionally opposed congestion pricing ([Briz et al. 2018](#)).

The Traffic Mobility Act’s goal was to raise at least \$15 billion; 80% would go to the subway, Staten Island Railway, and MTA buses, and 10% each to the LIRR and Metro-North ([Weisbrod et al. 2023](#)). In March 2021, the federal government gave the MTA permission to conduct an environmental assessment of the tax’s forecasted impact. This was done in lieu of a longer environmental impact statement in order to speed up the approval process while Biden, a Democrat receptive to congestion pricing, was in office, demonstrating how even seemingly technical regulatory decisions are political choices ([“Feds” 2021](#); [Rubinstein 2020](#)).

IV. Implementation and Delay

The MTA received federal approval for implementation in the summer of 2023 and voted on March 27th, 2024 to adopt the plan ([“Feds” 2021](#); [Kramer et al. 2024](#)). But just weeks before tolls were supposed to begin in June, Governor Hochul placed the program on an indefinite pause ([Kramer et al. 2024](#)).

Hochul cited economic concerns and “unintended consequences” for working-class New Yorkers as justification. However, her decision followed a statement from the Greater New York Automobile Dealers Association (GNYADA) opposing congestion pricing and an \$18,000 donation from the NYS Automobile Dealers Association ([“Kathy Hochul” 2024](#)).

Since 2018, Hochul has received over \$175,000 from automobile and trucking interest groups, including the GNYADA ([Schwenk 2024](#)). The GNYADA has been vocal about its opposition, stating the plan would hurt Manhattan GNYADA dealers and employees by discouraging driving in the city ([Greater New York Automobile Dealers Association 2024](#)). Given this relationship, concerns about losing support from these groups appears to be a factor in Hochul’s reversal.

The decision was also driven by opposition from NY suburbs, which polled at 72% in April 2024 ([Greenberg 2024](#)). With the 2024 Congressional elections upcoming, Hochul did not want to push suburban voters away from the Democratic party, especially after Democrats had already lost two House seats in 2022, tipping Congress into a Republican majority ([Vestal 2022](#)). Protecting Democratic representatives in competitive suburban districts was more important than pressure from city-dwellers and transit advocates, and even a commitment to a plan she had praised just weeks earlier ([Reisman 2024](#)).

Even Democrats like House Minority Leader Hakeem Jeffries supported the decision, despite representing a Brooklyn district which, according to transportation trends, stood to gain substantially from congestion pricing (explored in detail later) ([Reisman 2024](#); [AASHTO 2019](#)).

Hochul restarted the program in November 2024 about a week after Trump won the presidential election, with one change: lowering the toll for cars/passenger vehicles from \$15 to \$9. The quick turnaround was likely motivated by a desire to implement the plan before Trump, a vocal opponent of tolls, took office ([Ley and Hu 2024](#); [Colton and Rivard 2024](#)).

V. Opposition

Opposition to NYC congestion pricing comes primarily from concerns about redirected traffic and pollution, the idea that the tax hurts lower/middle-income workers, harm to small businesses, and mistrust over the use of revenues by the MTA. I will show these concerns are largely unfounded and rather, politically motivated.

A. Long Island

Long Island lawmakers have called congestion pricing a "\$1 billion tax" on suburban commuters, arguing it would unfairly impact lower and middle-income individuals and doubting the promised 10% revenue allocation to the Long Island Railroad (LIRR) (["Long Island" 2019](#)). In November 2024, the Town of Hempstead filed a lawsuit against the MTA, which is ongoing ([Gusoff 2024](#)).

In reality, only 1.75% of Nassau County and 1.01% of Suffolk County residents commute to Manhattan via car, undermining claims that it broadly harms Long Island commuters. Earnings by transit type are roughly equal (Nassau drivers earn 11% more than transit riders, and Suffolk drivers earn 8.6% less), further indicating the tax does not disproportionately affect lower-income workers ([U.S. Census Bureau 2023](#); [AASHTO 2019](#)).

Public choice theory helps explain political rhetoric: politicians amplify the concerns of a vocal minority to secure votes and appeal to an unaffected anti-tax majority, while ignoring that toll revenues fund a \$1.5 billion LIRR investment benefitting over 300,000 Long Island commuters ([Weisbrod et al. 2023](#)).

This \$1.5 billion would not be going to a failing institution. LIRR efficiency has been improving over time, with on-time performance at a high of 97% and the system providing 40% more service than pre-pandemic despite a 3% lower budget (["May 2025 MTA Board" 2025](#)). Still, crowded trains and busy transfer stations remain challenges. LIRR investment would benefit far more commuters than tolling harms. But unlike drivers, who face immediate costs, LIRR riders would experience gradual, less noticeable benefits, a political challenge that explains Long Island opposition.

B. The Bronx

The MTA's environmental assessment projected congestion tolling would cause higher truck traffic on the Cross Bronx Expressway, with a worst-case increase of 2.5% and PM2.5 (fine particulate matter which can cause health risks when inhaled) concentrations rising 0.68% ([TBTA 2022](#)). Following these projections, Bronx Representative Richie Torres spoke out,

stating the MTA had “an obligation” to find a pricing model with a neutral or beneficial impact on the Bronx ([Torres 2022](#)).

After the MTA’s final plan allocated \$155 million towards environmental harm mitigation in areas like the Bronx, Torres became a full supporter of the program ([“Governor Hochul Announces” 2023](#)). While this shift makes sense from an environmental policy standpoint, it also served Torres’s political ambitions, aligning with his efforts to build a voter base to contest Hochul in the 2026 gubernatorial primaries. When Hochul delayed congestion pricing in 2024, Torres criticized her, stating that “New York politics has no greater hypocrite than Kathy Hochul, who was for congestion pricing before she was against it before she was for it” ([Campanile and Bhole 2024](#)).

Speeds in the Bronx actually fell 2.5% post-implementation, making it the only region where average speeds have decreased. Bronx scientists and community leaders are also skeptical mitigation efforts will extend to the least affluent areas of the Bronx ([Carlo 2025](#); [“Scientists and Community Leaders” 2023](#)). Torres continues to support the program.

C. Northern New York & New Jersey

On January 19, 2023, Representatives Josh Gottheimer (NJ-5, the northern border) and Mike Lawler (NY-17, the suburbs above the Bronx), introduced the Anti-Congestion Tax Act, legislation to block the MTA from receiving federal grants unless congestion tolls exempt drivers from NJ and NY crossings into Manhattan ([Gottheimer 2023](#)). Gottheimer claimed the toll would “cost commuters up to \$23 per day” ([“RELEASE” 2023](#)), misrepresenting rates that only reach \$23 for large trucks, and incorrectly stated that the MTA acknowledged the policy would not reduce congestion or pollution, despite the environmental assesment projecting net positive environmental impact ([TBTA 2022](#)).

On January 15, 2025, the representatives reintroduced The Anti-Congestion Tax Act along with two new bills requiring an MTA audit and economic impact assessment ([“RELEASE” 2023](#)).

For Lawler (NY-17), opposition caters to the 2.2% of his constituents who commute to the CBD. This is a tiny, but vocal minority with a concentrated interest in ending tolls and disproportionate political weight ([AASHTO 2019](#)). His 2024 congressional campaign reflects this idea. Lawler’s

opponent, Mondaire Jones, took a moderate stance by supporting congestion pricing with exemptions, while Lawler labeled it "a money grab" and "a scam". His campaign also prioritized raising the SALT deduction cap, indicating an anti-tax voter base ([Anderson and Kramer 2024](#)).

Lawler's positioning aligns with public choice theory, especially given his razor-thin 2022 victory by 0.8% ([Vestal 2022](#)). In such a competitive district, appealing to his commuter constituency while maintaining broader anti-tax appeal is key.

The MTA's capital project also allocates \$1.5 billion to the Metro-North rail line. This investment would benefit the 70% of Manhattan-bound commuters from District 17 who use Metro-North ([Weisbrod et al. 2023](#); [AASHTO 2019](#)).

In New Jersey, the numbers are similar. Only 3.24% of residents work in Manhattan, and of those commuters, 80.7% use public transit ([AASHTO 2019](#)). The average income of residents who drive is over 20% higher than of public transit users ([Tully 2023](#)).

Moreover, congestion pricing has already had positive effects in NJ: Hudson and Bergen counties (which Gottheimer represents) each saw a 3% increase in speeds, with CBD-bound trips gaining 8%, as well as an almost 1% drop in CO2 emissions ([Cook et al. 2025](#)).

Despite evidence of benefits in his own district, Gottheimer maintains his opposition. The stance aligns with his political goals: he is currently running in New Jersey's 2025 gubernatorial Democratic primary with a campaign focused on tax-cutting. He is polling at 7%, while Mikie Sherrill is leading at 10%. As of January 2025, a majority of New Jersey voters (57%) still oppose congestion pricing ([Camille 2025](#)). An appeal to these constituents could boost his prospects in the upcoming election, and is likely a factor contributing to his aggressive opposition.

D. Federal

President Donald Trump has long criticized NYC's pricing plan, promising in his 2024 campaign to end it due to harms against working-class commuters and small businesses ([Brasch and Chiu 2025](#)). These claims lack supporting evidence.

As described above, a very small fraction of commuters from NY suburbs and NJ will pay tolls, a trend that extends to those in the city. Only 10-15% of outer borough residents work in Manhattan, and of those, 75-91% use public transit. Among drivers, those in the Bronx and Brooklyn earn over 30% more than transit users, and incomes are roughly equal in Queens and Staten Island, contradicting claims that tolls disproportionately burden lower-income or working-class groups ([U.S. Census Bureau 2023](#); [AASHTO 2019](#)).

Preliminary findings also show congestion pricing's economic benefits. CBD foot traffic was 4.6% higher in January 2025 than 2024 ([Spivack 2025](#)), and Broadway attendance increased 14% from last year, indicating increased tourism ([Kimball 2025](#)). In London, congestion pricing had no significant impact on business activity ([Santos et al. 2008](#)).

Despite this evidence, Transportation Secretary Sean Duffy revoked federal approval for congestion pricing in February 2025 ([Duffy 2025](#)).

The decision reflects efforts to maintain the support of Republican legislators, like Lawler, in passing federal legislation, and a continuing trend of conflict with Democratic leaders. The MTA has made similar claims, stating the decision to freeze funding was made "for blatantly political reasons" ([Shepardson and Harte 2025](#)). The current legal battle is clearly driven not by empirical evidence, but by partisan politics.

NY has maintained congestion pricing after approval revocation. In April, Duffy threatened to cut off transportation funding to NY ([Chen and Hu 2025](#)). The case is ongoing: federal judge Lewis Liman has granted congestion pricing temporary protection and blocked the federal government from withholding funds until June 9th while the case is being litigated ([Dolmetsch and Kaske 2025](#)).

VI. Impact & Alternatives

In the first four months of 2025, congestion pricing has raised \$215.7 million for the MTA ([Dolmetsch and Kaske 2025](#), [Russo-Lennon 2025](#)). CBD speeds have increased 15% and travel times have decreased 8%, while CO2 emission rates have decreased 2–3% in the CBD and other high-traffic routes ([Cook et al. 2025](#)).

So far, there has been no measurable change in PM2.5 levels, but it is too soon to tell ([Cook et al. 2025](#)). The NYC Health Department will continue to monitor impact with new air quality data in 2026 ([Logan 2025](#)).

Lower-income regions across the metropolitan area (which includes eastern NJ, Long Island, and upper NY), experienced a 1.73% increase in speeds. Wealthier areas experienced a 1.37% increase. The effect on CO2 emission rates follows a similar pattern, with the largest emissions decreases in lower-income areas. Speeds for drivers within each median household income group increased by a similar amount (8-9%) ([Cook et al. 2025](#)).

Concentration on whether tolls are regressive also avoids a more important question: are congestion tolls more or less regressive than other transportation funding strategies? A common alternative is a “local option sales tax”, where revenues are reserved specifically for public transit services. This kind of financing is more regressive; Orange County's transportation sales tax redistributed \$26 million from low-income to higher-income residents ([Schweitzer and Taylor 2008](#)). Meanwhile, toll revenues spent on public transit can help make their ultimate effect less regressive and, in some cases, progressive ([Schweitzer and Taylor 2008](#)).

Despite this fact, transportation sales taxes are more politically popular than congestion tolls since a 1% tax is a less visible cost for consumers ([Schweitzer and Taylor 2008](#)). Politically popular programs are not necessarily more economically sound or distributionally equitable.

VII. Comparative Analysis: London

London's congestion charge, implemented in 2003, is the world's most successful congestion pricing program, cutting traffic in the zone by 30% and 15% in surrounding areas, improving air quality, and reducing pollutant levels ([Santos et al. 2008](#); [Kelly et al. 2011](#)). Comparing London and NYC helps explain London's success and NYC's struggle.

Like NYC, London had faced worsening congestion for decades, but a fragmented transportation authority under Thatcher made action difficult. In 2000, the creation of a centralized transport authority, Transport for London (TfL), enabled change ([Santos et al. 2008](#)).

The MTA has less autonomy than TfL. TfL controls street operations, like placing bus and bike lanes, while the MTA cannot. The MTA is also led by the NYS Governor while TfL is led by the

London Mayor, making the MTA more vulnerable to statewide political pressure ([Surico 2019](#); [Gelinas 2020](#)).

The fact that revenues would be reinvested into public transportation was helped by the fact that London already had a trusted, well-functioning transit system ([Santos et al. 2008](#)). Meanwhile, rail tunnel building in New York is more expensive than anywhere else in Europe or Asia due to high labor costs and aging infrastructure, making small improvements incredibly costly and deepening MTA distrust ([Harris 2018](#)).

VIII. Conclusion

I hold that the NYC congestion pricing program should remain in place due to the positive impact it has had on congestion and traffic, greenhouse gas emissions, business and tourism, and its potential to generate millions in revenue to fund an essential NYC service—public transportation.

That said, congestion pricing has been shaped by political interests and incentives at every stage. From an initial proposal and passage resulting from public outrage and interest group pressure, to a delay motivated by electoral interests and lobbying, and finally to its expedited implementation, the program is a product of not only congestion concerns, but political calculation.

Opposition from various levels and geographies has been similarly politically charged. Elected officials have an incentive to prioritize concentrated interests that influence their reelection prospects. They misrepresent facts to appeal to constituents who lack detailed information, even if their actions work against majority interests.

Political viability remains a challenge for transportation policy in the U.S. London's experience suggests that institutional autonomy and political insulation are essential in implementing what are potentially effective, yet politically unpopular, economic policies. Understanding the political economy of transportation policy is critical in designing solutions that can withstand political pressures.

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